ORDINANCE 2022-44

AN ORDINANCE ADOPTING THE COUNTY ECONOMIC DEVELOPMENT INCOME TAX CAPITAL IMPROVEMENT PLAN FOR MONROE COUNTY, INDIANA

WHEREAS, pursuant to Ind. Code § 6-3.6-6-9.5, the Board of Commissioners of Monroe County, Indiana (the "County") may adopt a capital improvement plan specifying the uses of additional revenue to be allocated for economic development purposes; and

WHEREAS, the County desires to use revenues generated from the County Economic Development Income Tax ("**CEDIT**") for economic development purposes, as well as any other permitted use; and

WHEREAS, Ind. Code § 6-3.6-6-9.5(e) provides that the capital improvement plan must encompass a period of not less than two (2) years, and must be adopted before a county, city, or town may receive its certified distribution of revenue.

NOW, THEREFORE, BE IT RESOLVED, by the Board of Commissioners of Monroe County, Indiana, that:

1. The Board of Commissioners hereby adopts the Capital Improvement Plan of Monroe County, Indiana, which Plan is attached as Exhibit A.
2. This Ordinance Adopting the County Economic Development Income Tax Capital Improvement Plan for Monroe County, Indiana, shall become effective January 1, 2023, and shall continue until December 31, 2025.

So Approved this 2nd day of November 2022.

MONROE COUNTY BOARD OF COMMISSIONERS

"YEAS"	"NAYS"
Julie Thomas, President	Julie Thomas, President
Penny Githens, Vice President	Penny Githens, Vice President
Lee Jones, Commissioner	Lee Jones, Commissioner

ATTEST:

Catherine Smith

Catherine Smith, Monroe County Auditor

EXHIBIT A

ECONOMIC DEVELOPMENT INCOME TAX
CAPITAL IMPROVEMENT PLAN
OF MONROE COUNTY, INDIANA

Introduction

This document is the Capital Improvement Plan ("Plan") for Monroe County, Indiana ("County"). It is intended for adoption by the Board of Commissioners of the County in conformance with IC 6-3.6.

Term

The term of the Plan is three (3) years from the date of its adoption

Plan Objectives

IC 6-3.6-6-9.5 requires the adoption of the Plan by the Board of Commissioners before the County may receive distribution of the economic development portion of the Local Income Tax revenue, which is allocated solely for economic development purposes. The Plan must specify the uses for which the County proposes to use the economic development portion of the Local Income Tax revenue, which is allocated solely for economic development purposes.

Description of Capital Projects (collectively, the "Projects"):

Project 1:

General Description – County Justice Center

Estimated Total Cost - $100,000,000

Source of Funding – The economic development portion of the Local Income Tax revenue, which is allocated solely for economic development purposes.

Planning, Development and Construction Schedule – Purchase of land in 2022 with construction to be completed on or about December 2025. Once the project is completed, EDIT revenues will be used to make lease payments on the Justice Center.

Seventy-five Percent (75%) Test

In accordance with IC 6-3.6-6-9.5(e), the Plan incorporates projects, the cost of which projects is a least seventy-five percent (75%) of the fractional amount of additional revenue allocated for economic development purposes that is expected to be received by the County during the term of the Plan, as follows:

Expenditures during the term of the Plan:

Project 1 $ 32,954,469

Expected additional revenue to be allocated for economic development purposes during the term of the plan:

2023..$ 10,854,469 (estimated)

2024..$ 11,000,000 (estimated)

2025..$ 11,100,000 (estimated)

Total:..$ 32,954,469 (estimated)

Percentage of total to be allocated to the Projects during the term of the Plan:..100%